LUMINARA INSTITUTE OF LIGHT · A WASHINGTON NONPROFIT CORPORATION · UBI 606 219 823

Governance Guide

How Luminara Institute of Light is governed, in plain language. Each section names the bylaw article it describes.

This guide describes the corporation's bylaws; it is not the bylaws. Where this guide and the bylaws differ, the bylaws govern. The full text is held by the Secretary with the corporate records and is available on request.

THE CORPORATION · ARTICLES I AND II

Luminara Institute of Light is a Washington nonprofit corporation, formed under the Washington Nonprofit Corporation Act, and operates for public benefit: no part of its earnings or assets may benefit any private individual.

Its work includes education and research in human development, immersive learning environments, interdisciplinary research in human-computer interaction, extended reality, artificial intelligence, and biofeedback, and collaborations with educational, research, health, and civic organizations.

COMMUNITY, NOT MEMBERSHIP · ARTICLE III

The corporation has no members in the legal sense: no participant, donor, student, volunteer, or supporter acquires voting or property rights by taking part. What it has instead is a community. Pioneers, learners, volunteers, advisors, and partners participate in the work through nonvoting community designations, with a visible path from first task to contributor. Governance authority rests with the Board of Directors.

THE BOARD · ARTICLE IV

The affairs of the corporation are managed under the authority of a Board of Directors of three to fifteen people, chosen for integrity, judgment, and relevant expertise. The board maintains a majority of independent directors: people who receive no compensation from the corporation beyond expense reimbursement and hold no financial interest that would impair their judgment.

Directors serve staggered three-year terms, at most two consecutive full terms before a required year away, and receive no pay for board service. Each director is bound to the statutory standard of care: good faith, prudence, and the corporation's best interests.

OFFICERS · ARTICLE VI

The officers are a Chair of the Board, a Vice Chair, a Secretary, and a Treasurer, elected annually by the board; the board may also appoint a President or Executive Director. The Chair presides but holds no unilateral authority over the corporation. The Secretary keeps the minutes and the corporate records; the Treasurer oversees budgets, controls, and financial reporting. The same person may not serve as both Chair and Secretary.

HOW DECISIONS ARE MADE · ARTICLE V

The board acts by majority vote at meetings where a quorum (a majority of directors in office) is present; there is no proxy voting, and minutes record attendance, votes, recusals, and conflicts disclosed. The largest decisions are protected by a higher bar: amending the articles or bylaws, merger, sale of substantially all assets, dissolution, or a material change of purpose each require a two-thirds vote of all directors in office, on notice that names the action.

ETHICS, SAFETY, AND HONEST CLAIMS · ARTICLE VIII

Research involving human participants runs under appropriate ethical review, with informed consent, confidentiality protections, and the right to withdraw. Programs involving immersive media, biofeedback, or artificial intelligence carry safeguards matched to the activity, and participation is always voluntary. Unless delivered by licensed professionals under board approval, the corporation's programs are educational and research activities, not a substitute for medical or psychological care.

Public communications must be accurate: claims of benefit are supported by evidence or clearly framed as hypothesis or pilot finding. Anyone may report an ethical, safety, or financial concern, and retaliation against good-faith reporting is prohibited.

CONFLICTS OF INTEREST · ARTICLE IX AND APPENDIX A

Every director, officer, and covered person discloses conflicts annually and as they arise, steps out of the room for deliberation and voting on any matter in which they hold an interest, and leaves the decision to disinterested directors. Insider transactions must be fair to the corporation and documented in the minutes: the disclosure, the recusal, the vote, and the basis for approval.

MONEY AND RECORDS · ARTICLE X

The board approves an annual budget and receives regular financial reports; the fiscal year ends December 31. The corporation makes no loans to its directors or officers. Donor-restricted gifts are used as restricted, and any gift that would compromise the corporation's purposes or independence may be declined. Complete books, minutes, and records are kept under a document retention policy, and required federal and state filings, including charitable-solicitation registration, are maintained.

PERMANENT COMMITMENTS · ARTICLE XIII

Some rules cannot be waived by anyone. The corporation will never distribute earnings to private individuals; it will never participate in political campaigns for or against any candidate; lobbying will never be a substantial part of its activities; and if it ever dissolves, its remaining assets go exclusively to other 501(c)(3) organizations or to government for public purposes, never to insiders.

WHO HOLDS WHAT · ARTICLES IV AND VI · RESOLUTION 3

Scope belongs to the office; the board elects who holds it. As presented at the organizational meeting:

- **Chair of the Board · Thomas A. Furness III.** Presides at board meetings, serves as liaison between the board and executive leadership, helps set agendas, and performs the president's statutory functions while that office stays vacant. The Chair holds no unilateral authority over the corporation.
- **Vice Chair · Daniel Oestreich.** Acts for the Chair when the Chair is absent or unable, and carries duties the Chair or board assigns.
- **Secretary · Michele Atwater.** Keeps the minutes, notices, and corporate records, and ensures governance documents are preserved and available as the law requires.
- **Treasurer · Trond Nilsen.** Oversees budgets, financial reporting, internal controls, banking, and tax filings, and reports regularly to the board on the corporation's financial condition.
- **Directors · Mark Billinghurst, Dave Lorenzini, Marty Perlmutter, Drew Stone, Stacy Whittle.** Each director carries the same duties: prepare for and attend meetings, review financial and program information, disclose conflicts, and steward the corporation's resources with care and in good faith. Drew Stone additionally stewards the corporation's brand and visual identity by board practice.

Every officer seat is re-elected annually; no title carries pay for board service, and every holder signs the same annual conflict disclosure as every other director.

CHANGING THE RULES · ARTICLE XIV

The bylaws may be amended only by a two-thirds vote of all directors in office, on notice, and any amendment touching the corporation's name, purposes, tax-exempt status, nonmembership structure, or conflict procedures gets a protective review against the Articles of Incorporation and the law first. No amendment may authorize activity inconsistent with the corporation's charitable character.

STATUS AND THE FULL TEXT

The bylaws described here were presented to the Board of Directors at the organizational meeting of September 1, 2026. The signed text of record, with its Certificate of Adoption and appendices, is maintained by the Secretary in the corporation's records and is available on request. Requests route through the contacts on the Public Contacts sheet.

Prepared by Branding & Outreach as a public guide to the corporation's governance. This guide is updated when the bylaws are amended.